

22NWCV01596 22NWCV01596

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-08-20

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#12

A.F. ET AL. v. CASAREZ

ET AL.

CASE

NO.: 22NWCV01596

HEARING:

Thursday, August 20, 2026, at 9:30 AM

I.

Plaintiff

A.F's Motion to Order that Defendant County of Los Angeles' Employees' depositions be permitted to proceed with use of Juvenile Case File documents is GRANTED.

II.

Plaintiff

A.F's Motion Sever the declaratory relief cause of action alleged against Defendant THE CALIFORNIA STATE FOSTER FAMILY HOME AND SMALL FAMILY HOME INSURANCE FUND is DENIED.

Moving party to give notice.

Background

On December 13, 2022,

Plaintiffs A.F. a minor, by and through his Guardian ad Litem Francisco A. Miguel Esteban; E.F. a minor by and through his Guardian ad Litem Francisco A. Miguel Esteban; FRANCISCO A. MIGUEL ESTEBAN; and MARIA FRANCISCO TOMAS filed this action against Defendants GABRIELA CASAREZ; COUNTY OF LOS ANGELES ("County"); DEPARTMENT OF CHILDHOOD AND FAMILY SERVICES; STATE OF CALIFORNIA; DEPARTMENT OF SOCIAL SERVICES; and DOES 1 through 100.

On March 4, 2025,
Plaintiffs filed the operative Second Amended Complaint.

The operative Second Amended Complaint asserts the following causes of action:

1. Assault,
2. Battery,
3. Negligence,
4. Failure to Perform Mandatory Duties, and
5. Declaratory Judgment Pursuant to Health & Code § 1527.5.

Plaintiff A.F. a minor, by and through his Guardian ad Litem, Fransico Miguel Esteban ("Plaintiff") now moves to Compel Defendant FOSTER FAMILY HOME AND SMALL FAMILY HOME INSURANCE FUND's ("Fund")

Motion to Permit Depositions

Welfare & Institutions Code § 827(a)(1)(W)
states, in relevant part:

"(a)(1) Except as
provided in Section 828, a case file may be inspected only by the following: .

. .

(W)(i) An attorney
representing a party in a civil proceeding filed by, or on behalf of, the
person who is the subject of the juvenile case file, in which the defendant is
either the child welfare agency, or probation department, or an employee of one

of those entities, for use in the civil proceeding as provided in this subparagraph.

(ii) Information and

copies of records from a juvenile case file received pursuant to this subparagraph may only be used in the civil proceeding and, consistent with paragraph (4), shall not be disseminated to anyone who is not entitled to access under this subparagraph or any other state law or federal law or regulation, and shall not be used or made as an attachment to any other document in any other proceeding without the prior approval of the juvenile court."

(Wel. & Inst. Code § 827(a)(1)(W)(i),(ii).)

Plaintiff noticed depositions of several County social workers and case workers who oversaw Plaintiff's care. Plaintiff reached out to County to see if they had any objections to Plaintiff using juvenile case file documents during those depositions. County indicated it would only permit the depositions to proceed if Fund obtained an order permitting Fund's counsel to access the records.

On August 4, 2026, County Counsel informed Fund that the Department of Child and Family Services records for A.F. and E.F. would be provided to the Fund.

Thus, Fund received the relevant documents. The parties are ORDERED to proceed with the depositions with use of the Dependency Court materials. The depositions shall take place within the next thirty (30) days.

Severance

In the alternative, Plaintiff asks the Court to sever Fund from this action. Given that the Court ORDERED the depositions to proceed, Plaintiff's severance request is unnecessary and DENIED.